

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased: 6.29.2022

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AILEEN RODRIGUEZ-ROBLES,

SUMMONS

Plaintiff,

Plaintiff designates BRONX
County as the place of trial.

-against-

The basis of venue is:
Situs of Tort

THE CITY OF NEW YORK and
P.O. RASHARD JONES, NYPD Shield 18707,

Defendants
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Eastchester, New York
June 29, 2022



Thomas G. Cascione
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiff
AILEEN RODRIGUEZ-ROBLES
274 White Plains Road, Suite 6
Eastchester, New York 10709
(914) 961-1263
Our File No. 4102

TO: New York City Law Department
Attorneys for Defendant THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. RASHARD JONES, NYPD Shield #18707
NYPD 40th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased: 6/29/2022

-----X
AILEEN RODRIGUEZ-ROBLES,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK and
P.O. RASHARD JONES, NYPD Shield 18707,

Defendants
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Plaintiff AILEEN RODRIGUEZ-ROBLES, by her attorneys CASCIONE,
PURCIGLIOTTI & GALLUZZI, P.C., complaining of the Defendants respectfully alleges, upon
information and belief:

1. That at the time of the commencement of this action, Plaintiff AILEEN RODRIGUEZ-ROBLES resided in the County of Bronx, City and State of New York and the cause of action alleged herein arose in the County of Bronx, City and State of New York.
2. That on June 27, 2021, and at all times herein mentioned, Defendant THE CITY OF NEW YORK was, and still is, a municipal corporation.
3. At all times relevant and material herein, the defendant, P.O. RASHARD JONES, NYPD Shield 18707 was a member of the New York City Police Department and employee of Defendant, THE CITY OF NEW YORK.
4. That on or before March 16, 2022 and pursuant to an Order of this Court granting leave to file a Late Notice of Claim, a sworn Notice of Claim was deemed filed "Nunc Pro Tunc"

stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was deemed duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That by the aforementioned Order of the Court which incorporated a Stipulation between respective counsel, a hearing pursuant to General Municipal Law 50(h) was to be noticed by defendant CITY OF NEW YORK within 30 days however the CITY failed to request same and said time has expired and therefore the hearing has been waived.
6. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.
7. At approximately 2:40 a.m. on June 27, 2021, in the vicinity of the intersection of Saint Anns Avenue and Bruckner Blvd. in the County of the Bronx while plaintiff AILEEN RODRIGUEZ-ROBLES was lawfully standing on the street following a motor vehicle accident in which she was an injured passenger, defendant P.O. RASHARD JONES, NYPD Shield 18707 in his capacity as an officer of the NYPD, placed her in an ambulance and then conducted a warrantless arrest without probable cause.
8. Plaintiff AILEEN RODRIGUEZ-ROBLES was taken into custody, transported to Lincoln Hospital and was later transported from the hospital to Central Booking. Plaintiff was charged with Driving While Intoxicated although she was not operating a vehicle and had not been driving at the time of her arrest.

9. On June 27, 2021 Plaintiff AILEEN RODRIGUEZ-ROBLES was arraigned and was released but continued to attend court virtually until on motion of the District Attorney all charges were dismissed in Bronx Criminal Court on December 22, 2021. Upon information and belief, defendant P.O. RASHARD JONES, NYPD Shield 18707 had been informed that another individual at the scene was the actual driver of the vehicle that plaintiff was only a passenger in and he knew or reasonably should have known that he was maliciously prosecuting plaintiff AILEEN RODRIGUEZ-ROBLES

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST AND WRONGFUL IMPRISONMENT

10. That the arrest and wrongful imprisonment of plaintiff on June 27, 2021 was made without probable cause and in the face of actual knowledge of her innocence.
11. Because of the above stated false arrest and wrongful imprisonment plaintiff AILEEN RODRIGUEZ-ROBLES was caused to suffer damage to her reputation and was otherwise financially damaged. Plaintiff was caused to have suffered loss of liberty, emotional pain, suffering and humiliation.
12. That as a result of the foregoing false arrest and wrongful imprisonment plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

AS AND FOR A SECOND CAUSE OF ACTION FOR MALICIOUS PROSECUTION

13. Plaintiff realleges, reiterates and restates each and every allegation contained in paragraphs “1” through “12” as if fully restated herein.
14. That from on or about June 27, 2021 until December 22, 2021, Defendants deliberately and maliciously prosecuted Plaintiff, an innocent woman, without any probable cause whatsoever, by filing or causing to be filed a complaint in Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the Plaintiff of a violation of the criminal laws of the State of New York.
15. Because of the above stated malicious prosecution, Plaintiff AILEEN RODRIGUEZ-ROBLES was caused to lose opportunities for employment and other activities, suffered damage to her reputation and was otherwise financially damaged. Plaintiff was caused to have suffered emotional pain, suffering and humiliation.
16. That as a result of the foregoing malicious prosecution, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST P.O. RASHARD JONES FOR
FEDERAL FALSE ARREST, WRONGFUL IMPRISONMENT and MALICIOUS
PROSECUTION RESULTING IN VIOLATIONS OF CIVIL RIGHTS PURSUANT TO
42 USCA §1983

17. Plaintiff realleges, reiterates and restates each and every allegation contained in paragraphs “1” through “16” as if fully restated herein.
18. The search, seizure, arrest, and detention of the plaintiff on June 27, 2021 and continued malicious prosecution by the Defendant JONES and other officers, up until and through the dismissal of all charges on December 22, 2021, was done under color of state law, statute, ordinance, regulation, custom, or usage as the agents and employees of the NYPD of Defendant CITY OF NEW YORK in violation of plaintiff’s rights under *42 USCA §1983* as well as the United States Constitution.
19. The actions taken by defendant P.O. RASHARD JONES and his fellow officers were part of a policy and practice of the defendant CITY OF NEW YORK while policing in Bronx County, New York.
20. The above-described incidents between the plaintiff and members of the New York City Police Department violated her rights under the Fourth and Fourteenth Amendments to the United State Constitution in that she was unlawfully restrained and then prosecuted without basis or cause and denied due process of law.
21. Plaintiff is a Hispanic female which is a protected minority class and the NYPD officers who dealt with her displayed open bias including but not limited to the fact that they failed to translate her statements made in Spanish but instead attributed statements and admissions to her which she had not made.
22. Because of the above stated premises, Plaintiff was caused to have suffered pain, shock, and mental anguish; that these injuries and their effects will be permanent; and as a further

result of said conduct plaintiff has been caused to suffer genuine injury and pecuniary losses.

23. That as a result of the foregoing violation of her Civil Rights, Plaintiff is entitled to the costs and attorney's fees of prosecuting this action and as a result of the foregoing violations of Civil Rights, Plaintiff was damaged in an amount which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiff AILEEN RODRIGUEZ-ROBLES demands judgment against the Defendants upon the causes of action set forth above, jointly and severally, each in an amount which exceeds the jurisdiction of all lower Courts that may otherwise have jurisdiction over this action; together with the costs and disbursements of this action and punitive damages.

Dated: Eastchester, New York
June 29, 2022

Thomas G. Cascione
(Thomas.cascione@cpglawyers.com)
CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C.
Attorneys for Plaintiff
AILEEN RODRIGUEZ-ROBLES
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(914) 961-1263

Our File No. 4102

ATTORNEY'S VERIFICATION

THOMAS G. CASCIONE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at CASCIONE, PURCIGLIOTTI & GALLUZZI, P.C., attorneys of record for Plaintiff, AILEEN RODRIGUEZ-ROBLES. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not reside in the county wherein I maintain my offices.

DATED: Eastchester, New York
June 29, 2022


THOMAS G. CASCIONE